

Bylaws

Friends of Indian River, Inc.

ARTICLE I

Official Name

Section 1. Friends of Indian River, Inc. is a non-profit corporation organized and existing under the laws of the Commonwealth of Virginia. This organization shall be known as the FRIENDS OF INDIAN RIVER.

ARTICLE II

Objectives

Section 1. The objectives of this organization shall be:

The FRIENDS OF INDIAN RIVER shall be an organized exclusively for charitable, educational, and scientific purposes operated for the benefit of the people of Chesapeake. The primary goal of the Friends of Indian River is to improve the quality of life for all the residents of the Indian River neighborhoods by promoting and preserving a healthy and clean river, shorelines, parks, and green spaces connected to the surrounding community. These efforts include outreach to the community promoting attractive streetscapes, encouraging sustainable gardening and landscaping methods, energizing local business development, and supporting broader civic activities to improve the community.

ARTICLE III

Classification and Membership

Section 1. The FRIENDS OF INDIAN RIVER shall not discriminate on the basis of gender, race, religion or age. Minors may participate in the group's activities but are the sole responsibility of their parent or guardian.

Section 2. The members of this Club consist of the following classes:

- a. Supporting Members
- b. Honorary Members

Section 3. Any person may receive electronic communication from the organization, attend regular organization meetings, and participate in volunteer activities.

Section 4. Supporting Membership may be conferred upon any person who has completed membership application and paid the dues established by the Membership. Supporting Members may receive electronic communication from the organization, attend regular organization meetings, and participate in volunteer activities. Only Supporting Members may vote and hold office in the FRIENDS OF INDIAN RIVER.

Section 5. Honorary Membership may be conferred upon any person who has been elected to this class of membership by the majority vote of the Supporting Members.

ARTICLE IV

Membership Procedures

Section 1. Applications for membership are made in the manner established and approved by the Board of Directors. Upon payment of dues, a person will be considered a Supporting Member in good standing.

Section 2. Any member may resign from the organization. They must surrender of any property, including monies, belonging to the FRIENDS OF INDIAN RIVER upon resignation. Any person resigning from membership will not be entitled to any refund of dues.

Section 3. Membership in the organization is not transferable or assignable.

ARTICLE V

Dues

Section 1. The annual dues for Supporting Members shall be determined by the Board of Directors. The Board of Directors MAY define several classes of Supporting Membership, example of which include as Individual, Student, Family, Premier, Lifetime, etc.

Section 2. The Board of Directors MAY create a class of Supporting Membership of type Volunteer where the performance level of approved volunteer hours in the past year qualify for attaining Supporting Membership in lieu of payment of dues.

Section 3. The annual dues shall be due by the March 31st. Those not paying the annual dues by the end of April will be removed from the Supporting Membership list but may continue as participate in other organization activities open to any person.

Section 4. Membership dues after April will be prorated in a manner determined by the Board of Directors.

ARTICLE VI

Officers

Section 1. The Officers of the FRIENDS OF INDIAN RIVER shall be a President, Vice President, Secretary, and Treasurer.

Section 2. Each Officer shall be a Supporting Member in good standing. No officer role may be combined in one person.

Section 3. The Officers shall be elected as provided in Article XI.

Section 4. The duties of the Officers shall be as follows:

(a) THE PRESIDENT shall be the executive officer of the organization and shall preside over all meetings of the organization and the Board of Directors. The President shall be an ex-officio member of all standing and special committees. The President shall promote the growth of the FRIENDS OF INDIAN RIVER, and appoint committees as deemed necessary and shall further appoint a chairperson for each committee. The President may sign checks in the absence of the Treasurer. The President shall perform such other duties as usually pertain to the office.

(b) THE VICE PRESIDENT shall perform the duties of the President in his or her absence. The Vice President shall also perform such other duties as usually pertain to that office, or as may be assigned by the President or the Board of Directors.

(c) THE SECRETARY shall keep the records of membership, attendance, and minutes of the meetings of this organization, Board of Directors, and Committees and shall submit copies of

same to the President within thirty (30) days of the date of such meeting or as soon thereafter as necessity permits and, upon written request, to any Officer, Director or any class of member. The Secretary shall also be responsible for keeping records of all notices to the membership and all official correspondence of the FRIENDS OF INDIAN RIVER.

(d) THE TREASURER shall keep all records of membership fees, dues, sponsorships, donations, or any other funds that the organization may receive and shall deposit the same in the official depositories and shall disburse same on the order of the Board of Directors. The Treasurer shall maintain all financial records of the organization and shall prepare required financial reports for inspection by the President, Board of Directors, and any authorized auditors. The Treasurer shall prepare any tax filings (e.g. 990-N “e-postcard”) for the previous year by May 15th.

ARTICLE VII

Board of Directors

Section 1. The Board of Directors shall consist of the four (4) officers plus at least one (1) Director ‘At-Large’. The Board of Directors may increase or decrease the size of the board to have a total of either one (1) or three (3) or five (5) Directors ‘At-Large’, in addition to the four (4) officers.

Section 2. Each Director must be a Supporting Member in good standing.

Section 3. The Directors shall be elected provided in Article XI.

Section 4. The Board of Directors shall determine the policies and activities of the organization, approve the budget, approve all Treasurer’s reports, take counsel with committees, and exercise general management over the affairs of the FRIENDS OF INDIAN RIVER.

Section 5. The Board of Directors shall meet regularly at least twice a year and at the call of the President, or by call of a majority of the Board of Directors. At the discretion of the Board, committee chairpersons shall meet with the Board of Directors in joint session.

Section 6. A quorum of the Board of Directors shall be at least three (3) Directors if the size of the Board is five(5) or less, otherwise the quorum shall be at least (5) Directors.

Section 7. The Board of Directors is authorized to vote electronically upon determination by the President that the issue warrants action prior to the next scheduled meeting of the Board of Directors.

Section 8. Any member of the Board who is absent from three consecutive Board of Director meetings without being excused may be removed from office by the majority vote of the Board of Directors.

ARTICLE VIII

Committees

Section 1 The President, with the advice of the Board of Directors, may create standing committees which enable the organization to function more effectively in terms of its goals and interests.

Section 2. Special committees with terms of less than one (1) year may be established by the President and shall perform such duties as may be defined in their creation.

Section 3. All members of the committee shall be approved by the President and shall be subject to removal by the President, without cause. Each committee shall answer to the President and shall make such reports as he/she may direct.

Section 4. Committee chairs for standing committees shall be approved by the Board of Directors. Committee chairs shall be invited to board meetings to report on their committees.

ARTICLE IX

Duties of Standing Committees

Section 1 The duties of standing committees shall be determined at the time they are created.

ARTICLE X

General Membership, Annual, and Special Meetings

Section 1. The FRIENDS OF INDIAN RIVER shall hold regular membership meetings scheduled at a time, date and place determined by the President. Notice of the time, date and place of each meeting shall be provided by electronic communication prior to the meeting date. The regular meetings may be postponed by the President or Board of Directors if deemed necessary to accommodate the needs of the Board and the general membership.

Section 2. The annual meeting of the FRIENDS OF INDIAN RIVER shall be conducted during the January regular meeting.

Section 3. The FRIENDS OF INDIAN RIVER shall hold special membership meetings scheduled at a time, date and place determined by the President. Notice of the time, date and place of each meeting shall be provided by electronic communication at least prior to the meeting date. The special membership meetings may be postponed by the President or Board of Directors if deemed necessary to accommodate the needs of the Board and the general membership.

Section 4. Notice of the time, date and place of all regular membership, annual or special meetings shall be provided to at least two (2) weeks prior to the meeting date. Notice shall be

given by electronic communication including e-mail and posting to the FRIENDS OF INDIAN RIVER website. Failure to meet the two week notice provision shall not be deemed cause to invalidate any action taken at the meeting, provided that a quorum is present.

Section 5. A quorum at all regular membership, annual or special shall be a minimum of five Supporting Members if at least two (2) weeks prior notice was provided. If at least two (2) weeks prior notice was not provided, the quorum is the greater of five (5) Supporting Members or 15% of all Supporting Members in good standing.

ARTICLE XI

Nomination and Election of Directors and Officers

Section 1. The election of the Board of Directors shall be held at the annual meeting.

Section 2. Prior to the annual meeting, the President shall appoint a committee to be known as the Nominating Committee. The committee shall consist of three (3) members. The President shall designate the chairman of the committee. The duties of this committee shall be to make nominations to the Officers and Board of Directors, with the consent of those nominated, and to prepare a ballot for the election at least three weeks prior to the annual meeting.

Section 3. Voting shall be by ballot. Supporting Members in good standing, whether present or voting by absentee ballot, may vote. There shall be no voting by proxy. Absentee ballots must be requested 10 days prior to the meeting.

Section 4. Nominations from the floor at the annual meeting may be made for any officer or director and when so made, may be written in on the ballot for the election.

Section 5. A plurality of all votes cast for each position shall be necessary to win the election of that position. In the event that the ballots show a tie for any position, a quorum of the existing Board of Directors without the President will hold a vote to select the winner for the position from among the nominees who tied for the position. In the event that vote Board of Directors is also tied, the President will cast the tie breaking vote.

Section 6. In the event that a Director becomes unable to complete his or her term for any reason, the Board of Directors may with a majority vote appoint a replacement to complete that term.

Section 7. The term for the Officers and Board of Directors shall be from the First day of February of each year and shall serve for a term of one (1) year or until their successors shall be duly elected and qualified.

Section 8. No person shall serve in the same position as Officer or Director 'At-Large' for more than four (4) consecutive years.

ARTICLE XII

Revenue

Section 1. Membership dues are assessed and shall be collected by the Treasurer in the manner established by the Board of Directors.

Section 2. Contributions received from sponsors, donations, grants and general fund raising shall be collected by the Treasurer in the manner established by the Board of Directors.

Section 3. Contributions received from sponsors, donations, grants and fund raising projects that are designated for special projects, shall be collected by the Treasurer in the manner established by the Board of Directors and segregated from general funds and used only for the designated purpose.

ARTICLE XIII

Finance

Section 1. The FRIENDS OF INDIAN RIVER fiscal year will run from April 1st to March 31st of the following year.

Section 2. The Board of Directors shall prepare an annual budget for the subsequent fiscal year by March. The budget will be presented at the meeting in March for discussion and approval by the Supporting Membership.

Section 3. Deviations in expenditures greater than \$50 or 5% of the approved budget, whichever is greater, must be approved by the Board of Directors. Changes of less than this amount may be authorized by the President as long as the Treasurer determines that funds are available.

Section 4. The books of account shall be kept by the Treasurer and shall be reviewed by the Board of Directors. To this end, the Treasurer shall prepare a quarterly report summarizing the financial activities of the FRIENDS OF INDIAN RIVER for the Board of Directors meeting.

Section 5. The Board of Directors shall determine the official depository or depositories of the FRIENDS OF INDIAN RIVER.

Section 6. The Board of Directors may also, by majority vote, authorize the use of a credit line or credit cards, provided that use of such credit is expressly limited to a specified amount.

Section 7. The Treasurer shall sign checks to make payments. In case the Treasurer is unable to sign checks, make withdrawals or deposits or perform any other financial function, the President may do so in their stead. In addition, the Board of Directors may designate one or more responsible Directors or Officers to act as substitutes.

Section 8. The Board of Directors is authorized to engage consultants and independent contracts were deemed necessary, provided that the Treasurer reports that adequate funds are available.

ARTICLE XIV

Conflict of Interest

Section 1. No Officer, Director or member of the FRIENDS OF INDIAN RIVER shall take a formal position on behalf of the organization which is contrary to the formal or demonstrated position of the organization. This notwithstanding, no Officer, Director, or member shall be denied his or her individual rights to freedom of expression.

Section 2. No part of the net earnings of the FRIENDS OF INDIAN RIVER shall inure to the benefit of, or be distributable to its members, trustees, officers, or other private persons, except that the FRIENDS OF INDIAN RIVER shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of its objectives.

Section 3. No substantial part of the activities of the FRIENDS OF INDIAN RIVER shall be the carrying on of propaganda, or otherwise attempting to influence legislation, and the FRIENDS OF INDIAN RIVER shall NOT participate in, or intervene in (including the publishing or distribution of statements) any political campaign on behalf of or in opposition to any candidate for public office. The FRIENDS OF INDIAN RIVER may involve itself in issues of public policy, for example, organizations may conduct educational meetings, prepare and distribute educational materials, or otherwise consider public policy issues in an educational manner

ARTICLE XV

Removal of a Director or Officer

Section 1. A Director or Officer may be removed from office for misconduct upon a) the recommendation by a two-thirds (2/3) vote of the Board of Directors AND b) approval of the recommendation for removal by a two-thirds (2/3) vote of the Supporting membership attending a regular, special, or annual membership meeting at which a quorum is present. Written notice of the recommendation for removal of a Director or Officer shall be given the members, by electronic means, U.S. Mail or personal delivery, at least two (2) weeks prior to the meeting.

Section 2. Voting shall be by ballot. Supporting Members in good standing, whether present or voting by absentee ballot, may vote. There shall be no voting by proxy. Absentee ballots must be requested 10 days prior to the meeting.

ARTICLE XVI

Amendments

Section 1. An amendment of these Bylaws may be adopted by a two-thirds (2/3) vote of the Supporting membership attending a regular, special, or annual membership meeting at which at which a quorum is present. Written notice of the proposed amendment shall be given the members, by electronic means, U.S. Mail or personal delivery, at least two (2) weeks prior to the meeting.

Section 2. Voting shall be by ballot. Supporting Members in good standing, whether present or voting by absentee ballot, may vote. There shall be no voting by proxy. Absentee ballots must be requested 10 days prior to the meeting.

ARTICLE XVII

Rules of Order

Section 1. "ROBERT'S RULES OF ORDER" shall be the parliamentary authority for all matters of procedures not specifically covered by these By-laws.

ARTICLE XVIII

Dissolution

Section 1. Upon dissolution or termination of the FRIENDS OF INDIAN RIVER, or the winding up of its affairs, assets of the organization shall be transferred to the City of Chesapeake, Virginia or to an educational, scientific, charitable or nonprofit association recommended by the Board of Directors and approved by a majority vote of the members present at a general membership meeting. No distribution of assets shall be made until after all lawful debts and obligations of the FRIENDS OF INDIAN RIVER are paid.